

धारा 173 भारतीय नागरिक सुरक्षा संहिता

com

फॉर्म नं. 1

प्रथम सूचना प्रतिवेदन (धारा 154 द. प्रक्रिया संहिता के अन्तर्गत)

वि.पु.स्था.सी. II

FIRST INFORMATION REPORT (Under Sec. 154 Cr.P.C.)

S.P.E.C.-II

173 BNS

बुक नं. 1432
Book No.

क्रम सं. 005
Serial No.

1. जिला : थाना : वर्ष : प्र.सू.प्र.क्र. दिनांक :
District PS: Year FIR No. Date
2024 21/11/2024

Mumbai CBI, ACB, Mumbai RC0262024A0043

2. (1) विधान : धाराएं :
Act PC Act, 1988 Sections 7
(As amended in 2018)
- (2) विधान : धाराएं :
Act -- Sections --
- (3) विधान : धाराएं :
Act -- Sections --
- (4) अन्य विधान एवं धाराएं :
Other Acts & Sections --

3. (क) प्रतीत अपराध :
(a) Suspected Offence Demand of undue advantage by public servant.

(ख) दिन : दिनांक समय
(b) Day Date Time

12 November, 2024

(ग) थाने पर सूचना प्राप्त होने का दिनांक
(c) Information received at PS Date 18/11/2024

कायमी अपराध : दिनांक समय
Entry No. 03 Date 21/11/2024 Time 1000 Hrs.

4. सूचना का प्रकार : लिखित/मौखिक
Type of Information Written/Oral
Written

5. घटना का स्थान
Place of Occurrence JNCH, Nhava Sheva, Dist- Raigad, Maharashtra.

(क) थाने से दिशा व दूरी :
(a) Direction & Distance from PS

बीट नं. / Beat No.

(ख) पता:
(b) Address

(ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना -
(c) In case, outside the limit of this Police Station, then

पुलिस थाना का नाम
Name of PS

जिला
District

6. अभियोगी / सूचनाकर्ता :
Complainant / Informant

(क) नाम
(a) Name

Shri Suresh Shambhuram Nanda

(ख) पिता / पति का नाम
(b) Father's / Husband's Name

(ग) जन्म तिथि
(c) Date of Birth

(घ) राष्ट्रियता :
(d) Nationality **Indian**

(ड) पासपोर्ट नं. जारी दिनांक जारी होने का स्थान
(e) Passport No Date of Issue Palce of Issue

(च) व्यवसाय
(f) Profession

Private Person

(छ) पता -
(g) Address

**R/o. Ganesh Niwas, Flat No.304, Plot No-174, Koparigaon,
Sector 26A, Koparigaon, Navi Mumbai, Thane.**

7. ज्ञात / संदेही / अज्ञात / आरोपी का पूर्ण विवरण:
Details of known / suspected / unknown accused with full particulars
(यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
(Attached separate sheet, if necessary)

(1)

(2) 1. **Sh. Vineet Kumar Dhattarwal,**
SIO, SIIB (I) posted at JNCH, Nhava Sheva

(3)

8. अभियोगी / सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण :
Reasons for delay in reporting by the complainant / informant
No delay
9. अपहृत / सम्बद्ध सम्पत्ति का पूर्ण विवरण : (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
Particulars of properties Stolen (Attach separate sheet, if necessary)
Nil
10. अपहृत / सम्बद्ध सम्पत्ति का कुल मूल्य :
Total value of property stolen N.A.
11. मार्ग / अकाल मृत्यु सूचना क्रमांक :
Inquest Report / U. D. case No. if any N.A.
12. प्रथम सूचना विवरण :- (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First information contents (Attach separate sheet, if required)

A written complaint dated 18.11.2024 of Shri Suresh Shambhuram Nanda, age 38 yrs., residing at Ganesh Niwas, Flat No.304, Plot No-174, Koparigaon, Sector 26A, Koparigaon, Navi Mumbai, Thane has been received in this office. Original complaint dated 18.11.2024 is enclosed.

It is alleged that Complainant is working in M/s. Barna International India Ltd. The office of the said company is situated at Vadodara, Gujrat and engaged in business of Chemical Import. Complainant is authorized by his company i.e. M/s. Barna International India Ltd. for looking after the customs work related to import shipments, clearing from customs and to produce documents, reports, clarifications upon requested from customs department on behalf of the said company. On 08 Sept. 2024 a shipment vide BL No. DBXJEANSA2401025 of Complainant's company i.e. M/s. Barna International India Ltd. was landed in JNPT Port from Jabel Ali Port, UAE containing TOLUNE DI-ISOCYANATE chemical. Complainant had submitted the documents of said shipment to Customs Department through his CHA Sh. Ram Bodake for Custom Clearance. But said shipment was detained by SIIB (I), agency of Customs for some queries. The said shipment was examined by Sh. Vineet Kumar Dhatarwal, SIIB officer on 10th Sept.2024 in the presence of Complainant. After examination of shipment the samples of chemical were also sent for testing to Customs DYCC lab by Customs officer. Customs DYCC lab has given no objection. But SIIB (I) officer Sh. Vineet Kumar Dhatarwal, who is handling said matter, is not releasing said container. He also sent summon to complainant's company on 29.10.2024 for submission of some documents related to above mentioned container on or before 13.11.2024. Accordingly, Complainant met Sh. Vineet Kumar Dhatarwal on 12.11.2024 at about 1500 hrs. in his office cabin at Customs House, JNCH, Nhava Sheva and discussed about his queries for release of said container. During discussion Sh. Vineet Kumar Dhatarwal demanded Rs.5,00,000/- as bribe for releasing said container. After that Sh. Vineet Kumar Dhatarwal repeatedly demanded bribe through his CHA Sh. Ram Bodake for releasing the container.

The verification of the complaint has been conducted on 18.11.2024 and 19.11.2024 in the presence of the independent witnesses. Verification Report dated 20.11.2024 is enclosed. Verification of complaint revealed that a shipment vide BL No. DBXJEANSA2401025 of Complainant's company i.e. M/s. Barna International India Ltd. is pending for clearance with Sh. Vineet Kumar Dhatarwal, SIO, SIIB (I) posted at JNCH, Nhava Sheva. Further verification of complaint established demand of undue advantage of Rs. 5 Lakh by Sh. Vineet Kumar Dhatarwal, SIO, SIIB (I) posted at JNCH, Nhava Sheva and after negotiation agreed to accept Rs. 4 Lakh from the complainant Shri Suresh Shambhuram Nanda through his CHA Sh. Ram Bodake to release the shipment vide BL No. DBXJEANSA2401025 of Complainant's company i.e. M/s. Barna International India Ltd.

The aforesaid acts on the part of Sh. Vineet Kumar Dhatarwal, SIO, SIIB (I) posted at JNCH, Nhava Sheva prima facie discloses offence punishable U/s. 7 of Prevention of Corruption Act, 1988 (amended in 2018) and hence, a Regular Case is registered against Vineet Kumar Dhatarwal, SIO, SIIB (I) posted at JNCH, Nhava Sheva and entrusted to Shri Pravin Swami, PI for investigation..


(Suresh Kumar)
SP CBI ACB Mumbai.

13. कार्यवाही जो की गई : चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा (ओ) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है।

Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item no. 2

- (1) मामला पंजीकृत किया गया एवं जांच प्रारम्भ हुआ अथवा
Registered the case and took up the investigation or

A Regular Case is registered

- | | | | |
|--|---|------------|---|
| (2) निर्देशित (जांच अधिकारी का नाम)
Directed (Name of IO) | रैंक
Rank | नं.
No. | जांच हेतु लिया गया
Took up for investigation |
| Shri. Pravin Swami | Inspector of Police
CBI : ACB : Mumbai | | Yes |

- (3) कारण से जांच के नामंजूर
Refused investigation due to
- अथवा
or

- (4) पुलिस थाना को स्थानांतरित किया गया
Transferred to PS
- जिला
District
- क्षेत्राधिकार के आधार पर
on point of jurisdiction

अभियोगी / सूचनाकर्ता को प्र.सू. पत्र पढ़ाकर / पढ़कर सुनाया गया, जिन्होंने सही-सही अभिलिखित होना स्वीकार किया। इसकी एक प्रति अभियोगी / सूचनाकर्ता को निःशुल्क प्रदान की गई।

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया।

R. O. A. C.

14. अभियोगी / सूचनाकर्ता के हस्ताक्षर
Signature / Thumb impression
of the complainant/informant

थाना अधिकारी के हस्ताक्षर
Signature of Officer in-charge
Police Station

नाम / Name

(पद) / Rank

(Suresh Kumar)
SP CBI ACB Mumbai
No.

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of despatch to the court

(प्रभारी अधिकारी के हस्ताक्षर तारीख सहित)
Signature of recording Officer with date

प्रथम सूचना रिपोर्ट का आइटम 7 लगाएं

Attachment to item 7 of First Information Report

संदिग्ध व्यक्ति की शारीरिक विशेषताएं, विरूपता तथा अन्य विवरण :-

Physical features, deformities and other details of the suspect/accused : (If known / seen)

क्र.सं. Sl. No.	*लिंग (Sex)	*जन्म की तारीख / वर्ष Date/ year of Birth	*शारीरिक गठन (Built)	*ऊंचाई से. मी. में (Height) (in Cms)	*वर्ण (Complexion)	*पहचान चिह्न (Identification Mark/s)
1	2	3	4	5	6	7

विरूपता/विलक्षणता (Deformities peculiarities)	दांत (Teeth)	बाल (Hair)	आँख (Eye)	आदतें (Habits)	पहनावा (Dress habit/s)
8	9	10	11	12	13

भाषा / बोली (Language / Dialect)	स्थान / Place of				
	जले का निशान (Burn mark)	श्वेत कुष्ठ (Leucoderma)	तिल (Mole)	जखम चिह्न (Scar)	गोदना (Tattoo)
14	15	16	17	18	19

अभियोगी / सूचनाकर्ता, द्वारा संदिग्ध / अभियुक्त के बारे में एक या अधिक विवरण दिए जाने पर ही इसमें प्रविष्टि की जाए।

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.